

566; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529.) The motion is therefore GRANTED in its entirety.

Motion for Leave to File Second Amended Complaint

The motion substantially complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (Code of Civ. Proc. § 473, subd. (a)(1); *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [applying “a policy of great liberality in permitting amendments”]; see also Declaration of Griffin Burke ¶¶ 1-6.)

Defendants argue the proposed amendment is futile. While the court has discretion to deny leave to amend where a proposed amendment fails to state a cause of action, such denial is appropriate where the pleading is deficient as a matter of law and the defect cannot be cured by further amendment. (*California Cas. Gen. Ins. Co. v. Sup. Ct. (Gorgei)* (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds by *Kransco v. American Empire Surplus Lines Inc. Co.* (2000) 23 Cal.4th 390, 407.) Here, there may be insufficient facts to support Plaintiff’s claims, but it cannot be said with certainty that the claims fail as a matter of law or that the defects cannot be cured.

Defendants next argue the proposed amendment seeks to add new causes of action not tethered to the original facts. In general, amended pleadings can set forth entirely different claims, add new parties, seek a different or greater remedy, etc. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:640.) If there is a statute of limitations problem, it must appear the amendment is “based on the same general set of facts pleaded in the original complaint.” (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 626, disapproved on other grounds by *Colmenares v. Braemar Country Club, Inc.* (2003) 29 Cal.4th 1019; see also *Most Worshipful Sons of Light Grand Lodge Ancient Free and Accepted Masons v. Sons of Light Lodge No. 9* (1958) 160 Cal.App.2d 560, 564; *Bonded Prods. Co. v. R.C. Gallyon Constr. Co.* (1964) 228 Cal.App.2d 186, 189.) Here, however, it is not clear Plaintiff’s new claims have a statute of limitations problem.

Defendants argue the proposed SAC is a sham pleading. The court has discretion to deny leave where the proposed amendment omits or contradicts harmful facts pleaded in the original pleading, absent a showing of mistake or other sufficient excuse for changing the facts. (*Vallejo Develop. Co. v. Beck Develop. Co.* (1994) 24 Cal.App.4th 929, 946; *State of Calif. ex. rel. Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412.) Here, the prior version of the proposed amended SAC alleged Benworth PR and Claudia Navarro are the alter ego and/or in privity with the original defendants. (ROA 283 – proposed SAC at ¶¶ 2-8.) These facts are omitted from the new proposed SAC, but they are not material or harmful in light of the new allegations of post-judgment conduct. The motion is therefore GRANTED.

Counsel for Defendants shall give notice of this ruling.

11	Saracino v. Rzakhanova	The unopposed demurrer of defendant Gulzhanat Rzakhanova (Defendant) directed to the complaint of plaintiffs Katalena Saracino and Mohammed Awad (collectively, Plaintiffs) is SUSTAINED with 20 days leave to amend. The motion to strike is MOOT. Defendant is correct that the complaint is uncertain as paragraph 50 recites summarily that Plaintiffs are asserting causes of action for fraud, defamation, intentional infliction of emotional distress, invasion of privacy, negligence, and trespass and conversion, but the pleading contains no separately captioned counts and no identification of which Plaintiff asserts which claim. Thus, Defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against her. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) This defect also renders the complaint in violation of California Rules of Court, rule 2.112, which requires each cause of action to be stated by its number, its nature, the party asserting it if more than one party is represented on the pleading, and the party or parties to whom it is directed. (See CRC 2.112.) Plaintiffs failed to oppose the demurrer. As such, Plaintiffs implicitly conceded the demurrer's merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) Additionally, the Court notes that Plaintiffs attempted to file an amended complaint on September 2, 2026, but the filing was rejected as it was untimely filed and leave of court was thus required. (See Notice of Rejection at ROA 67; see also Code Civ. Proc., § 472(a).) It thus appears Plaintiffs are in agreement an amended complaint is needed. Accordingly, the demurrer based on uncertainty is SUSTAINED with 20 days leave to amend. The Court does not reach Defendant's remaining arguments at this time. Defendant's request for judicial notice is DENIED. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) Given the ruling to sustain the demurrer with leave to amend, the motion to strike is MOOT. Defendant shall give notice.
12	Daniels v. Lennar Homes of California	Counsel Sultana S. Kelantan's of Libra Law Firm's motion to be relieved as counsel of record for plaintiffs Eian Daniels and Arely Ramirez is CONTINUED to October 12, 2026, at 2:00 p.m. in Department N17. There is no proof of service showing the motions and supporting papers were served on the clients. (Cal. Rules of Court, rule 3.1362(d); Code of Civ. Proc. § 1005, subdivision (b).) At least 7 days before the next hearing date, counsel shall file a proof of service. Counsel for Plaintiffs shall give notice of this ruling.